

COURTING TROUBLE



The first ever impeachment motion was sought against Justice **V. Ramaswamy** in 1993. He was found guilty of misuse of his

office as the chief justice of the Punjab and Haryana High Court. But abstention by the Congress saved him.



Former CJI **Y.K. Sabharwal** faced allegations of delivering orders on sealing operations in Delhi against principles of natural justice. He was also accused of furthering his family's business interests. No charges, however, were proved.



The committee on judicial accountability had accused SC judge **M.M. Punchhi** of corruption. Before the requisite support of MPs

for impeachment was gathered, he was appointed the CJI. Notice of the motion was not presented to the Speaker.



For over eight years since 1999, **Ashutosh Asthana**, former central treasurer of Ghaziabad court, had diverted about Rs 7 crore from

treasury fund in collusion with judicial officers to buy expensive gifts for judges. He is now in police custody.



Justice **Nirmal Yadav** of the Punjab and Haryana High Court has been recused from judicial work after her name surfaced during

the interrogation of the accused in connection with cash-at-judge-door scam. She is now on leave.



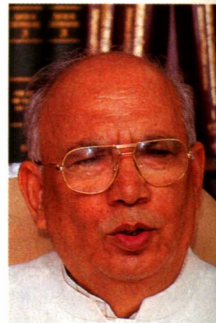
Allegations of corruption were levelled against Justice **A.S. Anand** pertaining to his term in the Jammu and Kashmir

High Court. But the charges against him could not be proved.

Act," says Indu Prakash Singh of the Campaign for Judicial Accountability and Reforms.

Sen's impeachment, when it happens, will be one of the rarest attempts to check corruption in judicial history. Post-Independence, there has been only one impeachment motion—in 1993, against V. Ramaswamy, a Supreme Court judge. "Regrettably, with a few exceptions, the fraternity of the higher judiciary tends to stick together when anyone speaks of any wrong-doing, even though they themselves are convinced of that wrong doing. There is, what I would respectfully describe, a Spirit of Trade Unionism that pervades the higher judiciary," said eminent lawyer Fali S. Nariman in an address at the recent annual function of Transparency International. There is a repeated demand for a judicial ombudsman to look into allegations against the judges and their appointment and promotions. "The Judicial Ombudsman would make a report in writing, even taking up matters on his own, to the CJ with regard to the particular judge against whom the complaint is made. After making due inquiries and upon receipt of that report, it would be incumbent on the CJ to see that no work is assigned to that particular judge until all the present dilatory processes of the current law of impeachment are gone through," said Nariman.

The opinion varies on the issue of appointing eminent citizens outside the judiciary in the proposed judicial accountability commission. A sitting judge of the Calcutta High Court said, "There is no other way but for Sen to be im-



"WE ARE MOOTING A PERMANENT MECHANISM TO DEAL WITH GRIEVANCES AGAINST JUDGES."

H.R. BHARGAVA
LAW MINISTER

peached. However, it is the judiciary that has hauled up one of its own due to misconduct. This proves that the judiciary can and does take action when needed." But others disagree. "Transparency in judicial functioning and accountability for judicial actions and inactions inspire public faith and confidence in the institution. The lack of stringent in-house accountability and transparency mechanisms has allowed the judiciary to keep itself free from regular public scrutiny," says RTI activist Aruna Roy. The Indian judiciary has at last woken up to seek transparency and started exposing and challenging the corrupt among its flock. Clearly, the latest scandals only lend urgency to the need to cleanse the Augean stables in the judiciary. Obviously, a Herculean task.

with inputs from Elora Sen